



The Way Insurance Should Be

Lloyd's Insurance
Company S.A.
Policy

LLOYD'S



LLOYD'S

Coverholder

PRIVATE MOTOR INSURANCE POLICY

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SPANISH NOTIFICATION OF POLICY DISCREPANCY CLAUSE

If the content of the policy contract differs from the insurance proposal form or from the agreed clauses, the policyholder shall be entitled to notify the insurer in the period of one month as from the date when the policy contract was provided so that the insurer may rectify the difference found. Once this period has elapsed without such a notification being made, the policy provisions shall stand.

Information

In deciding to accept this Policy and in setting the terms and premium, we have relied on the information you have given us. You must take care when answering any questions, we ask by ensuring that all information provided is accurate and complete. If we establish that You deliberately or recklessly provided us with false or misleading information, we will avoid this policy from the date the misrepresentation was identified.

If we establish that You carelessly provided us with false or misleading information it could adversely affect Your Policy and any claim.

For example, we may:

- amend the terms of Your insurance. We may apply these amended terms as if they were already in place if a claim has been adversely impacted by Your carelessness;

You must tell The Insurer about any change in the information You have provided.

The Insurer may then amend the terms of this Policy. If You are in any doubt, You should speak to Abbeygate.

LSW1091A-15 01/01/16

COMPLAINTS NOTICE – SPAIN (FOS)

Any complaint should be addressed to ABBEYGATE by one of the following methods:

Abbeygate Insurance Brokers Limited

Shop 1 Mesogi Avenue Paphos, 8280, Cyprus

Tel: 00357 26819175

E-mail: cyprus@abbeygate.cy

Your complaint will be acknowledged, in writing, within 5 (five) business days of the complaint being made.

A decision on your complaint will be provided to you, in writing, within 1 (one) month of the complaint being made.

Should you remain dissatisfied with the final response or if you have not received a final response within 1 (one) month of the complaint being made, you may voluntarily submit a dispute to arbitration in accordance with the terms of the Spanish Law for the Protection of Consumers and Users and related subordinate legislation, without prejudice to the provisions of the Arbitration Law in the event that the parties submit any dispute to the decision of one or more arbitrators.

You may be eligible to refer your complaint to the Directorate General of Insurance in Spain. The contact details are as follows:

Directorate General of Insurance
Pº Castellana, 44
28046 Madrid
Spain

Tel: 952 24 99 82

Website:

www.dgsfp.mineco.es/es/Consumidor/ProteccionAsegurado/Paginas/InformacionProcedimiento.aspx

You may bring a legal action before the Court of first instance corresponding to your domicile under Section 24 of the Insurance Contracts Act.

The complaints handling arrangements above are without prejudice to your right to commence a legal action or an alternative dispute resolution proceeding in accordance with your contractual rights.

LBS0034D

08/1/2025

Service of Suit and Jurisdiction Clause

It is agreed that this Insurance shall be governed exclusively by the law and practice of Spain, and any disputes arising under, out of or in connection with this Insurance shall be exclusively subject to the jurisdiction of any competent court in Spain.

All summonses, notices or processes requiring to be served upon Lloyd's Insurance Company S.A. for the purpose of instituting any legal proceedings against it in connection with this Insurance may be served if addressed and delivered to:

Lloyd's Insurance Company's general representative in Spain
Pº Castellana, 216, 8ª planta
28046 Madrid

This Service of Suit and Jurisdiction Clause will not be read to conflict with or override the obligations of the parties to resolve their disputes as provided for in any other clause in this Policy and, to the extent required, shall apply to give effect to that process.

LBS0081 01/12/2019

Several Liability Notice

The subscribing insurers' obligations under contracts of insurance to which they subscribe are several and not joint and are limited solely to the extent of their individual subscriptions. The subscribing insurers are not responsible for the subscription of any co-subscribing insurer who for any reason does not satisfy all or part of its obligations.

08/94

LSW1001 (Insurance)

Language Declaration Clause

The insured has declared their understanding of, and has requested for the contract of insurance to be provided in, the English language. The insured confirms they understand such contract and agree to be bound by its terms and conditions.

LBS0007

01/01/2019

Data Protection Notice

Who we are

We are Lloyd's Insurance Company S.A. (hereafter referred to as "Lloyd's Europe") an insurance company authorised and regulated by the National Bank of Belgium (NBB) and regulated by the Financial Services and Markets Authority (FSMA). Its registered office is at Place du Champ de Mars 5, Bastion Tower, 14th floor, 1050 Ixelles, Belgium. Its company/VAT number is BE 0682.594.839, RPR/RPM Brussels. LIC is a wholly owned subsidiary of the Society of Lloyd's, 1 Lime Street, London, EC3M 3HA, United Kingdom (Society of Lloyd's).

What personal information we process about you

We collect and use relevant information about you to provide you with the insurance cover or the insurance cover that benefits you, and to meet our legal obligations and the obligations of others in the insurance chain.

This information includes details such as your name, address and contact details and any other information that we collect about you in connection with the insurance cover, or the cover from which you benefit. This information may include special categories of personal data details such as information about your health and any criminal convictions you may have.

Why we collect your personal information and the lawful basis for Processing

We collect and use your personal data to provide you with the insurance cover. The legal basis is the contract performance with you as the data subject and the compliance with legal obligations, amongst other insurance and tax law obligations.

For processing sensitive health personal data, the general legal basis is the consent, unless there is a local statutory right to do so as a legal basis.

For processing child personal data, the legal basis is the consent given or authorised by the holder of parental responsibility over the child.

Finally, we can also process your personal data for fraud prevention and detection with legitimate interest as the legal basis.

Who we are sharing your personal data with

The way insurance works means that your information may be shared and used by several third parties in the insurance sector (inside and outside the European Economic Area-EEA). For example, insurers, insurance agents or insurance brokers, reinsurers, loss adjusters, sub-contractors, regulators, law enforcement agencies, fraud and crime prevention and detection agencies and compulsory insurance databases.

We will only disclose your personal information in connection with the insurance cover that is provided, and to the extent that it is needed or allowed by law.

From time to time we may need to share your personal information with third parties outside EEA and we will always take steps to ensure that any international transfer of information is carefully managed to protect your rights and interests:

- We will only transfer your personal information to countries which are recognised as providing an adequate level of legal protection or where we can be satisfied those alternative arrangements are in place to protect your privacy rights.
- Transfers to service providers and other third parties will always be protected by contractual commitments and where appropriate further assurances.
- Any requests for information we receive from law enforcement or regulators will be carefully checked before personal information is disclosed.

How long we keep your data

We keep your personal details for no longer than is necessary in offering the insurance arranged or to comply with our legal or regulatory requirements.

We will securely delete or erase your personal information if there is no valid business reason for retaining your data. In exceptional circumstances, we may retain your personal information for longer periods of time if we believe there is a prospect of litigation, in the event of any complaints or there is another valid business reason the data will be needed in the future.

Other people's details you provide to us

Where you provide us (or your insurance agent or insurance broker) with details about other people, you must ensure that this data protection notice is provided to them.

Complaints, contacting us and the regulator, and your rights

If you wish to know how we use your information or see a copy of our full Privacy policy, please contact us LloydsEurope.DataProtection@lloyds.com or go to the Privacy policy at website <https://www.lloydseurope.com> where we have full details.

You have the following rights in relation to the information we hold about you:

Right to access, right to rectification, right to erasure, right to restriction of processing, right to data portability, right to object, right to withdraw consent.

If you wish to exercise your rights, you need contact the insurance agent or insurance broker that arranged your insurance at:

Abbeygate Insurance Brokers Limited
Shop 1, Mesogi Avenue,
Paphos, 8280, Cyprus
Tel: 00357 26819175 Fax:00357 26222991
Email: andy@abbeygate.cy

You have the right to lodge a complaint with the competent data protection authority, but we encourage you to contact us before doing so.

Consent

For processing health or genetic personal data, and for processing child personal data below the age of 16, in connection with the insurance cover, the insurance agent or insurance broker that arranged the contract will ask you to obtain your consent through the data protection consent form, except in countries where, for the processing of sensitive health personal data, in the context of an insurance policy, there is a local statutory right to do so.

The processing of child personal data will be lawful if the consent is given or authorised by the holder of parental responsibility over the child.

Member States may provide by law for a lower age for those purposes provided that such lower age is not below 13 years.

You are free to give us your consent, however, if you do not give your consent, or you withdraw your consent, this may affect our ability to provide the insurance cover from which you benefit and may prevent us from providing cover for you or handling your claims.

Contact details of the Data Protection Officer

If you have any questions relating to data protection that you believe we will be able to answer, please contact our Data Protection Officer:

Data Protection Officer
Lloyds Insurance Company S.A.
Bastion Tower
Place du Champ de Mars 5
1050 Bruxelles
Belgium
Email : LloydsEurope.DataProtection@lloyds.com

LBS0046D
17/03/2023

GENERAL INSURANCE CONTRACT CONDITIONS

PRELIMINARY ARTICLE

I. DEFINITIONS

In this contract,

1. **INSURER** means: Lloyd's Insurance Company S.A.
2. **POLICYHOLDER** means: The natural or legal person who, with the Insurer, enters into this contract and assumes the obligations therein, except for those which, due to their nature, are to be met by the Insured.
3. **INSURED** means: The natural or legal person, holder of the interest that is the object of the insurance, who shall assume the obligations herein in the absence of the Policyholder.
4. **OWNER** means: The natural or legal person who is the official owner of the vehicle insured hereby.
5. **BENEFICIARY** means: The natural or legal person who holds the right to compensation.
6. **DRIVER** means: The people or person who have a driver's permit and were authorised to drive the vehicle by the Insured or the owner of the vehicle, and who were driving the vehicle, or had it in their custody or were responsible for it at the time of the claim.

It shall be construed that the vehicle was only driven by the people or person named in the Special Conditions, and whose stated characteristics are the base for calculating the premium.

7. **POLICY** means: The document that contains the terms and conditions of the insurance. They are an integral part of the policy: The General Conditions, the Particular Conditions that individualize the risk; the Special Conditions, if pertinent, and the Supplements or Schedules that are issued with the policy to complement or modify it.
8. **SUM INSURED OR MAXIMUM COVER** means: The maximum sum to be compensated per claim in each type of insurance.
9. **EXCESS** means: The expressly convened sum that will be deducted from the compensation for each claim and that will be paid by the Insured.
10. **INSURED VEHICLE** means: The automobile vehicle, with its standard and optional elements and/or trailer, where appropriate, as described in the insurance's Specific Conditions.

11. **THE STANDARD AND/OR OPTIONAL ELEMENTS** are defined below:

Standard elements shall mean the elements that are always included in that vehicle model by the manufacturer at no extra cost, and without which the vehicle cannot be purchased on the market.

Optional elements shall mean any elements that are expressly requested by the purchaser of the vehicle or that are included by the dealer or the seller as an extra, either as a gift or an offer.

Any optional elements are to be stated in the Specific Conditions, with their literal description.

12. **PURCHASE VALUE** means: The sum paid by the owner, according to the sales receipt, to purchase the insured vehicle, including the surcharges and taxes that make the vehicle apt for being driven on public roads, unless they are tax deductible for the owner. This price only includes the vehicle's standard elements and the optional elements that are expressly described in the Specific Conditions.

13. **MARKET VALUE** means: The sales value of the insured vehicle, immediately prior to the claim. The said market value shall be established by consideration of the insured actual purchase price and according to the price of a vehicle with identical features, condition and age on the "second hand" car market, taking as basis published data in the

statistics bulletin for the quarter corresponding to the date on which the claim occurs, publications such as the Spanish National Association of Motor Vehicle Vendors or in similar publications that may replace the former, applying the corresponding corrections if the vehicle can be inspected. The insurer will only ever pay the lesser of any price of actual **purchase value** and market review price

14. FIRST LOSS means: The maximum limit of compensation for a claim shall be the value given in the Specific Conditions. For new coverage after a claim, the premium will need to be reinstated on a proportional basis until its next expiry date.

15. PREMIUM means: The price of the insurance. In addition, the premium receipt shall include any surcharges and taxes required by law.

The premium is defined according to the principle of free competition on the insurance market. It may be modified to allow the Insurer to pay the series of obligations that arise from the insurance contract.

16. CLAIM means: Any event, the consequences of which are warranted by one of the insurance types.

All of the damages resulting from the same event shall be construed as a single claim.

17. BODILY INJURY means: The bodily injury or death of natural persons.

18. PROPERTY DAMAGE means: The damage, deterioration and destruction of objects, as well as injury to animals.

19. TOTAL LOSS means: That the cost of repairing the claimed vehicle exceeds 75 percent of its market value or, where appropriate, its purchase value, where such a warranty is applicable.

20. UNLAWFUL REMOVAL means: The offence of theft, robbery or unauthorised use as defined in the Spanish Criminal Code, whether the offence was accomplished or attempted.

21. MOTOR VEHICLE means: For compulsory motor civil liability purposes, any mechanically propelled vehicle intended for travel on land and not running on rails which: (a) has a maximum design speed of more than 25 km/h; or (b) has a maximum net weight of more than 25 kg and a maximum design speed of more than 14 km/h. It also includes any trailer or semi-trailer intended for use with such a vehicle, whether attached or unattached. It does not include rail vehicles, nor wheelchairs or other motorised mobility aids intended exclusively for use by persons with reduced mobility, although vehicles adapted for use by persons with reduced mobility remain motor vehicles where they otherwise meet this definition. Cover under this Policy applies only to the vehicle described in the Schedule.

22. DRIVING EVENT / USE OF VEHICLE means: For compulsory motor civil liability, any use of a motor vehicle consistent with the vehicle's normal function as a means of transport at the time of the accident, irrespective of the vehicle's characteristics, the terrain on which it is used, or whether it is stationary or in motion. The following are not driving events for this purpose: authorised motor sport events or activities in restricted and demarcated areas; use of the vehicle as a means deliberately to cause damage to persons or property, without prejudice to the obligations of the Consorcio de Compensación de Seguros where applicable by law; and movements of vehicles used exclusively in restricted-access areas of ports and airports, without prejudice to any separate insurance, bond or financial guarantee required by law.

23. USUAL DRIVING AREA means: For the purpose of determining the premium applicable to the contract, the usual driving area is the area where the driver described in the Specific Conditions resides.

24. THEFT OF THE ENTIRE VEHICLE means: When, in the event of theft, robbery or unauthorised use of the insured vehicle, it has not been recovered before forty days have elapsed from the date of the report to the Insurer.

The date on which the insured vehicle is recovered shall be construed as the date on which the competent authority recovers the said vehicle.

25. CATEGORY ONE VEHICLES means: For rating and policy classification purposes, vehicles with four or more wheels, provided their total weight, including useful load, is 3,500 kg or less, with the exception of quads. This category does not alter the compulsory motor definition of Motor Vehicle in clause 21.

26. CATEGORY THREE VEHICLES means: For rating and policy classification purposes, two- and three-wheel vehicles, including scooters, three-wheeler vans, motorcycles, mopeds and similar vehicles. This category also includes quads and does not alter the compulsory motor definition of Motor Vehicle in clause 21.

27. PERSONAL BELONGINGS means: Objects found inside the insured vehicle that are the property of the Insured and that the Insured can prove.

28. DOMESTIC PET means: Any animal kept for domestic, household or companion purposes, including any animal in the care, custody or control of the Insured, the Policyholder, the driver or any person resident with them.

29. INFESTATION means: The presence, nesting, fouling, contamination, chewing, gnawing or other activity of any Rodents, Vermin, insects or other pests in or on the insured vehicle.

30. RODENT OR RODENTS means: Rats, mice, squirrels and any other gnawing mammal of the order Rodentia.

31. VERMIN means: Animals, insects, birds or other pests commonly regarded as harmful, destructive or likely to cause contamination or damage.

II. INSURANCE TYPES

The Insurer hereby assumes coverage of the claims described below and which have been expressly convened in the Specific Conditions, with the limits and for the motor vehicle or vehicles described therein:

TYPE ONE: COMPULSORY CIVIL LIABILITY (Article 33) AND VOLUNTARY CIVIL LIABILITY (Article 34).

TYPE TWO: DAMAGE TO THE INSURED VEHICLE, FIRE INCLUDED (Article 35), THEFT OF THE VEHICLE (Article 36), WINDSCREEN BREAKAGE (Article 37), AND BODILY ACCIDENTS (Article 38).

III. TERRITORY

1. Compulsory insurance, Type One, which is regulated by Article 33 of this policy, shall take effect in the European Economic Area and the rest of the countries that signed the Inter-Bureau Agreement (Green Card Agreement), pursuant to Article 4 of Spanish Royal Legislative Decree 8/2004 of 29 October, by means of which the revised text of the Law on Civil Liability and Motor Vehicle Insurance is approved, and in Article 6, Royal Decree 1507/2008, dated 12 September, approving the Regulations on Obligatory Insurance and Civil Liability for Motor Vehicles.

2. Coverages of Type One, detailed in Article 34, and coverages of Type Two detailed in Articles 35, 36, 37 and 38, if they appear in the policy's Specific Conditions as having been contracted, shall be valid in:

Spain and the remaining European Union.

The other countries that signed the Inter-Bureau Agreement (Green Card Agreement) and that appear on the Insurance's International Certificate.

United Kingdom, Andorra, Gibraltar, Liechtenstein, Monaco, San Marino and the Vatican City.

IV. TERRITORIAL EXCLUSION: RUSSIA, UKRAINE AND BELARUS - LMA5583B

Notwithstanding anything to the contrary in this Policy, this Policy excludes any loss, damage, liability, cost or expense of whatsoever nature, directly or indirectly arising from or in respect of any:

- i. entity domiciled, resident, located, incorporated, registered or established in an **Excluded Territory**;
- ii. property or asset located in an **Excluded Territory**;
- iii. individual that is physically in an **Excluded Territory**;

- iv. claim, action, suit or enforcement proceeding brought or maintained in an **Excluded Territory**;
- v. payment in an **Excluded Territory**.

This exclusion will not apply to any coverage or benefit required to be provided by the insurer by law or regulation applicable to that insurer, however, the terms of any sanctions clause will prevail.

For purposes of this exclusion, "**Excluded Territory**" means:

- Belarus (Republic of Belarus); and
- Russian Federation; and
- Ukraine (including any disputed regions of Ukraine and including the Crimean Peninsula)

All other terms, conditions and exclusions remain unchanged.

LMA5583B

8 March 2023

V. SANCTIONS LIMITATION CLAUSE

No (re)insurer shall be deemed to provide cover and no (re)insurer shall be liable to pay any claim or provide any benefit hereunder to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that (re)insurer to any sanction, prohibition or restriction under United Nations resolutions or the trade or economic sanctions, laws or regulations of the European Union, United Kingdom or United States of America.

ARTICLE 1 - GENERAL EXCLUSIONS AND RIGHT OF RECOVERY

I. GENERALLY EXCLUDED RISKS

The appropriate exceptions to the Compulsory Civil Liability coverage, without prejudice to the Insurer's right of recovery against the Driver or the Insured.

In addition to the specific exclusions described in the different types of insurance, in general the Insurer does not cover the consequences of the following:

- a) Loss to the vehicle caused knowingly by the Policyholder, the Insured, the driver, the owner and their families, unless the damage was caused to avoid a worse situation.
- b) Loss due to flood, earthquake, volcanoes, atypical cyclones, falling sidereal bodies and aerolits, terrorism, riots, popular uprisings, peacetime events and operations of the Armed Forces or Security Forces and Corps, civil or international war, unruly behaviour during meetings, demonstrations and strikes, and events declared a "national catastrophe or calamity" by government authorities.
- c) Loss due to changes to the material's atomic structure, its thermal, radioactive or other reactions, and the artificial acceleration of atomic particles.
- d) Loss caused by drunk driving or driving under the influence of drugs, narcotics and psychoactive substances, and when testing the driver of the insured vehicle after the claim shows levels of alcohol in blood or in the driver's breath that are higher than the law allows, or when the driver is found guilty of drunk driving, or when a court ruling states drunk driving as the main or concurrent cause of the accident.

e) Loss caused when the insured vehicle is driven by a person who does not hold an appropriate driving licence, or whose driving licence has been annulled or taken away due to a conviction or an administrative penalty, except for the rights that assist the Insured in the event of loss due to theft and the policy covers theft.

f) When drivers of a vehicle insured by the Insurer cause an accident, whether or not they are convicted for the offence of "hit and run". This exclusion shall not cover the owner of a vehicle when the driver is paid by the owner, without prejudice to the Insurer's right of recovery against the said driver.

g) Loss due to theft, robbery or unauthorised use of the insured vehicle. Where theft cover has been contracted, the provisions of Article 36 shall apply.

h) Unless otherwise convened, any loss caused by any type of motor vehicle that performs industrial or agricultural work, if the accidents occur in the course of such industrial or agricultural work and are not a direct consequence of driving such vehicles.

i) Loss that arises when the Policyholder, the Insured or the driver have infringed a regulation regarding regular check-ups, the number of people being transported, weight, the vehicles authorized load or dimensions, the objects or animals that may be transported or the way in which this is done, providing that the infringement was the direct or indirect cause of the accident or of its consequences if it was a vehicle that was not officially authorized for transporting people.

j) Loss occurring when the insured vehicle takes part in bets, challenges and sports events.

k) Loss occurring when the insured vehicle is used as an instrument to knowingly commit an offence or a crime against people or property.

In all cases, the Insurer shall be free from the compensation payment and any other benefit, if the loss was due bad faith on the part of the Policyholder, the Insured, and the owner, the driver authorized by them, or any of their relatives.

Likewise, the Insurer shall be held free if there was a false intention or falsehood in the claim report, without prejudice to any other pertinent liabilities.

II. RISKS EXCLUDED UNLESS OTHERWISE CONVENED

The policy does not cover the consequences of the events described below unless they are expressly included in the Specific Conditions and the corresponding surcharge has been paid:

Loss caused when an insured vehicle's takes part in races and contests, and in the preparations for such events.

Loss caused by leaving the insured vehicle on airport property, even sporadically, and at seaports in the case of vehicles that normally travel around at such ports, except when the organisation that manages these facilities requires specific insurance be taken out in order to travel around said facilities.

III. RIGHT TO ACTION FOR RECOVERY

After they have paid compensation, the Insurer may take action for recovery:

1. Against the driver, the owner of the vehicle that caused the accident and/or the Insured, if the damage was due to the wilful behaviour of either of the latter, to drunk driving, or driving under the influence of drugs, narcotics or psychoactive substances, and when testing the driver of the insured vehicle after the claim shows levels of alcohol in blood or in the driver's breath that are higher than the law allows, or when the driver is found guilty of drunk driving, or when a court ruling states drunk driving as the main or concurrent cause of the accident.

2. Against the third party who caused the damage.

3. Against the Policyholder or the Insured, for the motives established under the Insurance Contract Act and against the owner or the driver, for motives derived from the insurance contract.

4. On any other occasion in which action for recovery could be taken according to law.

ARTICLE 2 - PROVISIONS FOR POLICY TYPES ONE

1. Obligation to inform

The Policyholder or the Insured shall notify the Insurer of any court and out-of-court order or administrative notification that comes to their knowledge regarding the loss within twenty-four hours, as well as any kind of information regarding its circumstances and consequences.

Failure to comply with this obligation shall only entail loss of the right to compensation if malicious intent or serious fault concur, in which case the Insurer may claim reimbursement from the Policyholder or the Insured of any moneys they have already paid or are obliged to pay.

In court procedures promoted against the Policyholder or the other Insured people, the former shall provide the lawsuit or settlement slip, if appropriate, to the Insurer's address before twenty-four hours have elapsed.

2. Claims

The Insured shall not negotiate, accept or reject a claim related to the claims covered in this policy without the Insurer's permission. Any dealing with the contrary party on the part of the Insured without prior permission from the Insurer shall give the latter the right of action for recovery against the Insured for any moneys that the Insurer is obliged to pay.

3. The Insured's defence

Unless otherwise convened, the Insurer shall assume legal management in any claims made by an aggrieved party for which this policy covers Civil Liability. The Insurer shall name solicitors and lawyers who shall defend and represent the Insured or the people for whom the Insured is liable, even when there are no grounds for a claim. The cost of the defence shall be met by the Insurer. The Insured shall collaborate with the defence and undertake to grant powers of attorney and personal assistance when necessary.

When the party who makes the claim is insured by the same insurance company, the claim shall be excluded from the coverage. If other conflicts of interest exist, the Insurer shall notify the Insured of the fact, without prejudice to any urgent judicial formalities required for the defence. The Insured may choose to retain the Insurer's legal management or entrust their representation and defence to a different person.

In the latter case, the Insurer shall pay the cost of the said legal management according to the Guideline Regulations of the appropriate professional associations and any legal fees, up to the limit convened in the policy.

4. Capacity to deal

The Insurer may reach a settlement with the aggrieved party at any time for the sum of compensation they claim, within the limits of the policy coverage.

5. Insurer's provision

Within the limits set forth in the Specific Conditions, the Insurer shall pay:

The aggrieved parties, or the parties who derive their right from them, any indemnities that arise from the Insured's or the driver's Civil Liability, under the terms described in Article 34.

The cautionary payments that the courts may require the Insured or the driver to pay, due to their Civil Liability, up to the sum fixed in the policy's Specific Conditions for such coverage.

6. Lawsuits

In court proceedings promoted against the Policyholder or the other Insured people, the Policyholder shall provide the lawsuit or the settlement slip, where appropriate, to the Insurer's management before twenty-four hours have elapsed.

7. Reimbursement of moneys, court costs and expenses

If, in judicial proceedings, the contrary party is ordered to pay the court costs, the Insurer shall subrogate themselves in the Insured's rights to receive the costs in order to recover the expenses they have paid and which are included in the court costs.

In the event of criminal proceedings in which the Policyholder, the Insured, the owner or the driver of the vehicle receive a final judgement beyond appeal for an offence committed with malicious intent, they shall be obliged to reimburse the moneys the Insurer paid for their defence.

The Insurer reserves the right to require the Policyholder, the Insured, the owner or the driver of the vehicle to reimburse any bail deposited during a criminal trial against an insured person, providing the bail concerned is lost for reasons that can be attributed to the said insured person.

The Insurer may require the Policyholder, the Insured, the owner or the driver of the vehicle to reimburse any moneys paid by them from above the maximum cover given in the Specific Conditions.

BASIS OF THE CONTRACT

ARTICLE 3 - REPORTS

The Statement of Fact Proposal Form, in conjunction with this policy, form an entire unit, the basis of the insurance, which only covers the property and risks

ARTICLE 4 - CONCLUSION AND EFFECT OF THE CONTRACT AND DURATION OF THE INSURANCE

After the contract has been signed, the insurance enters into force on the day and at the time given in the Specific Conditions, providing the Insurer has been paid the premium, unless otherwise convened.

The contract shall be null and void if, at the time it is concluded, no vehicle exists or a claim has occurred.

The Specific Conditions are fixed for the duration of the contract. Unless otherwise convened, the policy shall expire and be renewed automatically every year. The Policyholder is to pay the premium for the following year to keep the insurance current.

The Insurer may oppose the renewal of the contract by written notice to the Policyholder no later than two months before the current insurance period expires. The Policyholder may oppose the renewal of the contract by written notice to the Insurer no later than one month before the current insurance period expires.

Only the Insurer is authorised to issue premium receipts. Therefore, only the receipts issued by them or, in the event of direct debit, the slips issued by the bank in the Insurer's name, shall be evidence of payment.

The premium shall be calculated on the current rate each time the policy expires and when the Policyholder decides to make changes in a risk.

ARTICLE 5 - OBLIGATIONS WHEN TAKING OUT INSURANCE AND WHILE IT IS IN FORCE

The current policy is agreed on the basis of the data provided by the Policyholder, by which the Insurer accepts the risk, assumes the obligations that arise due to the contract and sets the premium.

Before entering the contract, the Policyholder is obliged to report to the Insurer all of the circumstances known to them that may have a bearing on evaluation of the risk, in a questionnaire provided to that effect. The Policyholder shall be exempted from the obligation if the Insurer fails to provide the questionnaire or if, having provided it, the circumstances that may have a bearing on evaluation of the risk do not appear on the questionnaire.

While the contract is in force, the Policyholder or the Insured shall notify any circumstances that increase the risk and that are of such a nature that, if they had been known by the Insurer at the time the contract was concluded, they would not have entered into the contract or they would have entered into it with more expensive conditions. Such circumstances could be the objective conditions of the driver or drivers, the specifications of the insured vehicle and the purpose for which it will be used.

ARTICLE 6 - PREMIUM PAYMENT

The Policyholder is obliged to pay the first premium or the single premium when the contract is entered into and signed. Successive premiums shall be paid as each policy expires.

If no place for making payments is given in the Specific Conditions, it shall be construed that the payment shall be made at the Policyholder's address. Payment can also be made at any of the banks listed on the bill.

If the policy is not to come into force immediately, the Policyholder shall delay payment of the premium until the policy comes into effect.

If the Policyholder fails to pay the first premium or did not pay the single premium when it was due, the Insurer shall have the right to terminate the contract or claim payment of the premium through the courts on the basis of the policy. If the premium was not paid before the loss occurred, the Insurer shall be freed from their obligation.

In the event of failure to pay one of the subsequent premiums, the Insurer's coverage will be suspended for one month after the expiry date. If the Insurer fails to claim payment before six months have elapsed since the premium was due, the contract shall terminate without any further notification or requirement on their part.

In all cases, when a contract has been suspended, the Insurer may only demand payment of the current premium.

If the contract has not been discharged or terminated pursuant to the above paragraphs, the coverage shall have effect again at midnight on the day that the Policyholder paid the premium.

For annual insurance policies, the Insurer may collect premium by instalments at the request of a Policyholder. The insurance policy will still be an annual policy, and the payment by instalments shall be for the entire year. In the event of a claim, the Insurer may deduct the outstanding instalments for the current year from the compensation.

If the Policyholder fails to pay the instalments, the above paragraphs shall apply.

ARTICLE 7 - DIRECT DEBIT

The following rules shall apply if direct debit of the premiums through a bank has been agreed between the parties:

1. The Policyholder shall send a letter with an order for direct debit of the payments to the bank or savings bank.

2. The premium shall be construed as paid on the due date unless the bank returns the receipt without paying it, in which case the Insurer shall give written notice of the non-payment to the Policyholder, giving a new method and a new deadline for making the payment.

ARTICLE 8 - RESCINDING THE POLICY: HOW AND WHOM

1. The Insurer, by written notice to the other party no later than **one month** before the current insurance period has expired.
2. The Policyholder and the Insurer, pursuant to the provisions set forth in Article 14.
3. The Policyholder, pursuant to Article 12.
4. The Insurer, pursuant to the provisions in Article 13.
5. The Insurer, pursuant to the provisions in Article 11.
6. Both parties, by mutual consent, may rescind the contract after reporting a claim, whether or not a compensation is to be paid. The Insurer shall reimburse the Policyholder for the part of the full premium that the Policyholder has already paid, which would be the period between the date that the discharge came into effect and the expiry date of the current insurance period.

ARTICLE 9 - TERMINATION

The contract shall terminate when:

1. The entire insured vehicle has been stolen or is a total loss, in which case the Insurer shall have the right to keep the premium for the current period. Termination of the contract in this case shall not change the rights and obligations of the parties in relation to the reported losses.
2. A premium has not been paid, if the contract has not been discharged and the Insurer does not claim payment within a period of no more than six months following the expiry date of the last period.

ARTICLE 10 - CONCURRENT INSURANCE

1. Policyholder or the Insured shall notify the Insurer if two or more contracts that cover the same risks and for identical periods are taken out with different Insurance Companies by the same Policyholder. The Insurers shall not be obliged to pay compensation if such notification is maliciously omitted and a claim is over-insured.

After a claim has occurred, the Policyholder and the Insured shall notify each Insurer and give the names of the other insurers. The Insurers shall contribute to the payment of the compensation in proportion to the sum insured, without exceeding the cost of the damage. Within this limit, the Insured may request compensation according to each contract from each Insurer. The Insurer who has paid more than their proportional part may take action for recovery against the other Insurers.

2. In policy type One Article 34, in the event of a single claim that is covered by a single Civil Liability driving insurance, and where the property of more than one aggrieved party has been damaged and the sum of the indemnities exceeds the fixed compensation limit, the right of each aggrieved party in regards to the Insurer shall be proportionally reduced to the damages incurred.

If there is damage to third parties as the result of a single claim in which two or more vehicles are involved, each Insurer shall comply with the obligations caused by the claim, pursuant to what is convened in negotiated agreement, ordered by the court or, where appropriate, proportionately to the annual risk premium for the motor vehicle named on the insurance policy that was entered into by the Insurer.

ARTICLE 11 - INCREASE OF THE RISK

In the course of the contract, the Policyholder or the Insured is obliged to notify the Insurer of any circumstance that increases the risk, in which case:

1. The Insurer may propose changes in the conditions of the contract within a period of two months counted from the day on which the increase was reported to them. The Policyholder will then have fifteen days, counted from the date of reception of the proposal, to accept or reject it. In the event of rejection or silence, the Insurer may rescind the contract, after warning the Policyholder. The Policyholder shall have a new fifteen-day period in which to answer, after which the Insurer shall have the following eight days in which to inform the Policyholder of the final cancellation.
2. Likewise, the Insurer may also rescind the contract by giving written notice to the Policyholder within one month, counted from the day on which they knew about the increase of risk.
3. If a claim should occur and the increased risk has not been reported, the Insurer shall be free of their provision if the Policyholder or the Insured have acted in bad faith. In the contrary case, the provision shall be limited proportionately to the difference between the convened premium and the premium that would have applied if the true dimension of the risk had been known.

ARTICLE 12 - DECREASE IN RISK

In the course of the contract, the Policyholder or the Insured may inform the Insurer of any circumstance that decreases the risk and that is such that, if the Insurer had known about it when the contract was concluded, they would have given the Policyholder more favourable conditions.

Under such circumstances, the Insurer shall lower the cost of future premiums proportionately at the end of the current period covered by the premium. Otherwise, the Policyholder shall have the right to discharge the contract and to a reimbursement of the difference between the premium they paid and the sum that should have been paid, from the time that the lowering of the risk was made known.

ARTICLE 13 - MISREPRESENTATION

1. The Insurer shall be able to rescind the contract through a statement addressed to the Policyholder within a period of one month, counted from the moment they have knowledge of the Policyholder's misrepresentation or reserve. Any premiums for the current period shall belong to the Insurer from the moment the Insurer makes this statement, unless they have malicious intent or gross negligence.
2. If the claim occurs before the Insurer makes the statement referred to in the previous paragraph, their provision shall be diminished in the same proportion as the one existing between the premium convened in the policy and the appropriate premium for the true dimension of the risk.
3. The Insurer shall be freed from paying the benefit if the reserve or misrepresentation was due to malicious intent or gross negligence on the part of the Policyholder. In such cases, if the Insurer is obliged to pay a benefit, their right to take action for recovery against the Policyholder and/or the Insured is expressly acknowledged.

ARTICLE 14 - TRANSFERRING THE OWNERSHIP OF AN INSURED VEHICLE

The Policyholder shall notify the Insurer of the transference of the ownership of the insured vehicle. The Insurer shall rescind the contract before fifteen days have elapsed from the day they knew of the verified transfer of ownership.

In the claim that the Insurer learns that ownership of the vehicle has been transferred before they have been notified of the fact by the Insured, they may sue the previous insured owner for damages due to a breach of the duty to notify the Insurer of the transfer of ownership.

ARTICLE 15 - NOTIFICATIONS

1. Any notifications that should be sent due to this contract shall be made in writing and sent to the address given in this policy by the contracting parties.
2. The Policyholder's payment of the premium to the insurance broker shall not be construed as a payment made to the Insurer unless, in exchange, the broker delivers the Policyholder a receipt for the premium issued by the Insurer.
3. The insurance contract and any changes or additions thereto shall be made in writing.

ARTICLE 16 - THE BENEFICIARY

If the Specific Conditions contain a beneficiary item, it is expressly convened at the request of the Policyholder or the Insured that, in the claim of a total loss, covered by the warranties herein, which should be settled in cash and not with repairs charged to the Insurer, the person or entity who is named in the Specific Conditions shall be the Beneficiary of the insurance, to the sum that the Policyholder/Insured owes to the Beneficiary at the time of the accident, which shall not exceed the sum insured.

CLAIMS

ARTICLE 17 - OBLIGATIONS OF THE POLICYHOLDER

1. The Insured, the Policyholder, the owner or the driver where appropriate, shall use every means available to them to lessen the consequences of a claim. A breach of this duty shall give the Insurer the right to lower their provision proportionately, taking into account the importance of the resulting damage and the degree of negligence on the part of the Insured, the Policyholder, the owner or the driver.

If such a breach takes place with the obvious intent to be detrimental to the Insurer or deceive them, the Insurer shall be freed of any provision arising from the claim.

2. The costs originated by compliance with the said obligation shall be paid by the Insurer, providing they are not untimely or out of proportion with the salvaged property, and providing they do not exceed the sum of the compensation.

If, by virtue of the contract, the Insurer only has to compensate part of the damage caused by the claim, they shall reimburse the proportional part of the salvage expenses, unless the Policyholder or the Insured has acted according to the Insurer's instructions, in which case the Insurer shall pay the entire expense.

3. The Policyholder, the Insured or the Beneficiary shall report the occurrence of the claim to the Insurer no later than seven days after they know of it, unless a longer period has been set in the policy. In the event of a breach of this obligation, the Insurer may claim damages for the failure to report. This effect shall not take place if it can be proved that the Insurer knew of the claim by some other means.
4. The Insured may not abandon the damaged property to the Insurer, except under the special circumstances envisaged in the law and in the General Conditions herein.

ARTICLE 18 - FURTHER OBLIGATIONS OF THE POLICYHOLDER AND THE INSURED

1. Obligation of the Insured in case of fire

In this case, in addition to the general data that should appear on the claim report, the Insured shall send the Insurer an authorized copy of the statement made before the appropriate authority, giving the place, date and precise time of the loss, the causes, whether they are known or presumed, and the measures taken to counteract the effects of the fire.

2. Obligations of the Insured in case of theft

In the claim of theft, the Insured is obliged to adopt all available means to limit or diminish the loss by doing everything possible to recover the objects that have disappeared, and by preventing the loss of any circumstantial evidence surrounding the crime and its perpetrators, until the occurrence has been duly verified.

The Policyholder the Insured or the Beneficiary shall report the claim to the local police at the least possible delay after knowing about the claim. They shall give the Insurer's name and address, and shall send the Insurer a list, in writing, of the objects stolen and an estimate of the damage. Likewise, they shall send a certified copy of the report to the local police.

3. Deprivation of a driving licence

The Policyholder or the Insured shall give the Insurer all kinds of information on the circumstances and consequences of the claim and keep them informed of the legal proceedings regarding the traffic accident, if appropriate. In the event of a violation of this duty, the right to compensation shall only be lost if there has been malicious intent or gross negligence.

ARTICLE 19 - REFUSAL OF THE CLAIM

When the Insurer decides to refuse a claim on the basis of the policy's norms, they shall give the Policyholder written notice of their decision within no more than ten days, counted from the date on which they have knowledge of the cause on which the rejection is based and giving the reasons thereof.

If it is appropriate to reject a claim after payments have been made on its account or after consolidating its consequences, the Insurer may take action for recovery against the Insured for the paid sums, or for those which they are obliged to disburse by virtue of the bail, providing the general time period set forth in Article 1964 of the Spanish Civil Code for rejecting a claim has not elapsed.

APPRAISAL OF DAMAGES

ARTICLE 20 - DAMAGE VERIFICATION

Verification of claims and the appraisal of their consequences shall be made by mutual agreement between the Insurer and the Policyholder. Appraisals shall be started before seven days immediately following the date on which the Insurer receives.

ARTICLE 21 - COMPENSATION AGREEMENT

If the Insurer and the Insured agree at any time to the sum and the method of compensation, the Insurer shall pay the convened sum or carry out the operations required to repair or replace the insured vehicle.

ARTICLE 22 - DESIGNATING LOSS ADJUSTERS

1. If no agreement is reached before forty days have elapsed following the report of the loss, each party shall designate a loss adjuster. The adjusters' acceptance shall be recorded in writing.

2. After the adjusters have been designated and have accepted their posts, to which they may not renounce, they shall begin their work.

3. In the claim that the loss adjusters arrive at an agreement, it will be shown in a joint statement which will give the causes of the claim, the appraisal of the damages, and any other circumstances that may have a bearing on determining the compensation, according to the nature of the insurance concerned, and a proposal for the sum of the compensation in cash.

ARTICLE 23 - FAILURE TO DESIGNATE

If one of the parties fails to designate an adjuster, in the case described in paragraph one of the preceding Article, the said party shall be obliged to make the designation before eight days have elapsed following the date on which they are required to do so by the party who has already made the designation. Failure to designate a loss adjuster within the second time period shall be construed as acceptance of the report made by the other party's adjuster, whose report shall be binding.

ARTICLE 24 - THIRD LOSS ADJUSTER

When the loss adjusters fail to reach an agreement, the parties shall name a third adjuster by agreement. If there is no agreement, the designation shall be made by the judge of the District Court of the place where the property is located, as an act of voluntary jurisdiction and according to the formalities for drawing lots for adjusters set forth in the Spanish Rules of Civil Procedure. In such case, the adjuster's report shall be issued within the time period given by the parties or, failing that, before no more than thirty days have elapsed since the third loss adjuster was designated.

ARTICLE 25 - BINDING REPORT

The loss adjusters' report, whether it is unanimous or by majority, shall be notified to the parties immediately and beyond doubt, and shall be binding for them unless it is challenged judicially before thirty days have elapsed, in the case of the Insurer, and one hundred and eighty days in the case of the Insured, counted, in both cases, from the date of the notification. If no court action has been taken within the given time periods, the adjusters' report shall be unassailable.

The obligation to notify the parties is the personal obligation of the third loss adjuster.

If the adjusters' report is challenged, the Insurer shall pay the Insured the minimum sum that the Insured may owe, according to the circumstances known by them. If the sum is not known, the Insurer shall pay the compensation stated by the adjusters, before five days have elapsed.

In the claim that the Insured is obliged to claim a compensation through the courts due to a delay on the part of the Insurer in the payment of a compensation that has become unassailable, the compensation shall be increased by the interest set forth in paragraph nine of Article 30. In this case, the compensation shall begin to accrue since the evaluation became unassailable for the Insurer and, in all cases, with the court costs incurred by the Insured due to the proceedings. The judgement shall make express mention of the compensation, regardless of which judicial proceeding is applicable.

ARTICLE 26 - ADJUSTMENT COSTS

Each party shall pay the fees for their loss adjuster. Half of the third adjuster's fees and the remaining costs for the loss adjustment shall be charged to the Policyholder and the other half to the Insurer. However, if one of the parties made a loss adjustment necessary by maintaining an appraisal of the damage that was obviously out of proportion, only that party shall be liable for the expense.

ARTICLE 27 - CONSEQUENCES OF DESIGNATING LOSS ADJUSTERS

The designation of loss adjusters and other acts performed by the contracting parties when investigating a loss and appraising the damages shall not imply that they waive the rights they are granted in this policy, or that the Insurer accepts the claim.

ARTICLE 28 - DETERMINING THE COMPENSATION

1. The parties may agree to substitute payment of the compensation for the repair or replacement of the damaged vehicle. When the agreement is to pay the compensation, the Insured shall present, as a prior requirement, the receipts for repairing the damage.

2. When there is an urgent reason for immediate repair, the Insured may have the vehicle repaired providing the cost thereof does not exceed Euros 150. The Insured shall give the invoice to the Insurer, enclosing a claim report in the manner and within the time periods set forth in Article 17, paragraph 3.

3. There shall be total loss when the estimated cost for repairing the damaged vehicle exceeds 75 percent of its market value or of its purchase value, in which case the claim shall be settled pursuant to these General Conditions, after the value of the remains which are still owned by the Insured have been deducted.

4. In the claim of fire, the Insurer shall be obliged to compensate damages caused by a fortuitous accident, the malicious intent of others, and negligence on the part of the Insured or anyone else. Therefore, the Insurer shall compensate any damages and loss of property caused by the direct action of the fire, as well as those caused by the inevitable consequences of the fire, particularly:

Damage caused by necessary measures taken by the Authorities, the Policyholder or the Insured, to prevent, stop or extinguish the fire, without including the expenses incurred by applying such measures.

The cost incurred by the Insured to move the insured vehicle and any other measures adopted to save it from the fire. Any impairments to the insured vehicle due to the circumstances described in the preceding sections. The Insurer shall not be obliged to compensate any damages caused by fire when the fire is caused by the malicious intent or gross negligence of the Insured, the Policyholder, or the vehicle's driver.

5. Extraordinary risks to be paid by the Consorcio de Compensación de Seguros.

Assessments shall be made by the loss adjusters designated by the Consorcio de Compensación de Seguros, according to the Syndicate's current criteria at the time of the claim.

ARTICLE 29 - EXCESS

In any claim, no matter what caused it, the sums and/or percentages listed in the Specific Conditions and that can never be the object of insurance shall be paid by the Insured, as excess.

If more than one object is destroyed or damaged as the result of a single claim, the excess shall only be deducted once.

If the damages or loss incurred in the claim does not exceed their respective excess, such damage shall be paid in full by the Insured.

The Insurer shall only compensate the damages and losses that exceed the excess, after the excesses have been deducted.

ARTICLE 30 - COMPENSATION PAYMENTS

Payment of the compensation shall abide by the following:

1. The Insurer shall be obliged to pay the compensation upon conclusion of the investigation and loss adjustments required to establish the existence of the claim and the cost of the damages thereof.

Pursuant to Article 25 herein and in compliance with the law, failure to reach an agreement between the Insured and the Insurer or the loss adjusters named by each party shall require recourse to the adjusters' report.

The compensation shall be paid before five days have elapsed since the date of the final judgement. If the judgement is contested, the Insurer shall pay the adjustment accepted by the Insured.

2. In all cases, the Insurer shall pay the minimum sum that the Insured may owe, according to the circumstances known by them, before forty days have elapsed since they received the claim report.

3. The compensation may be substituted by the repair or replacement of the damaged object, providing the nature of the insurance allows it and the Insured agrees.

4. If the stolen vehicle is recovered before forty days have elapsed since the Insurer was notified, the Insured shall be obliged to accept its return.

If the recovery takes place after the said time period has elapsed, the vehicle shall become the Insurer's property, and the Insured shall undertake to sign any documents that are needed to transfer the vehicle to the Insurer or to a third party named by them, unless the Insured wants to recover the vehicle by returning the compensation received.

For that purpose, the Insurer shall be obliged to offer the vehicle to the Insured and to return it if the Insured expresses their acceptance before fifteen days have elapsed since the day on which the offer was made.

5. If recovery or reimbursement takes place after a claim, the Insured shall be obliged to notify the Insurer before forty-eight hours have elapsed since they knew about it. The Insurer may then deduct the compensation or claim it from whoever received it.

6. Before proceeding to pay the compensation, the Insurer may require a certification from the Policyholder certifying that the damaged property is free of encumbrances, if it is encumbered as collateral.

7. When the Insurer claims for and on behalf of the Insured, applying the direct compensation agreements entered into by insurers for processing driving claims, the offer or reasoned reply that is sent to the Insured shall be construed as made by and on behalf of the respondent company.

8. If the Insurer defaults, any outstanding damages shall be governed by Article 20 of the Spanish Insurance Contracts Act and by the revised text on the Law on Civil Liability and Motor Vehicle Insurance.

FURTHER PROVISIONS

ARTICLE 31 – SUBROGATION

1. After the compensation has been paid, the Insurer shall be subrogated in any of the Insured's rights, appeals or actions against any author of the claim and even against other Insurance Companies, should they exist, up to the limit of the compensation, except for the warranty for death or disability in Article 39 and with no need for any other subrogation. The Insured shall be liable for any damage which their acts or omissions may cause to the Insurer in their right to subrogation. However, the Insurer shall not be able to use the subrogated rights against the Insured.

2. The Insurer shall not have a right to subrogation against any of the people whose acts or omissions cause the Insured's liability according to law, nor against the person who caused any claim involving the Insured, a direct relative, a blood relative down to the third level, a legal guardian or an adopted child who live with the Insured.

This rule shall not apply if the liability is due to malicious intent or if the liability is covered by an insurance contract.

In the latter case, the subrogation shall be limited to in scope to the terms of the said contract.

3. In the claim of concurrence of the Insurer and the Insured against a liable third party, the recovery obtained shall be divided between them in proportion to their respective interest.

4. The Insured grants the Insurer an irrevocable mandate to deal with the damaged parties or their beneficiaries and to compensate them if appropriate.

ARTICLE 32 – PRESCRIPTION

The actions arising from the contract prescribe after two years have elapsed, counted from the day on which they could have been used, except in Type One which prescribes after one year, and in Type Five, Six and Seven which prescribes after five years.

AUTOMOBILE INSURANCE TERMS AND CONDITIONS

ARTICLE 33 - TYPE ONE - COMPULSORY CIVIL LIABILITY

1. Object of the coverage

With this compulsory coverage for all vehicle owners, the Insurer assumes the obligation of compensating the driver or the owner of the vehicle described in the Specific Conditions, up to the current lawful limits, for traffic claims in which the said vehicle is involved and which cause damage. This obligation may be demanded pursuant to the revised text of the Law on Civil Liability and Insurance for Motor Vehicles and the Regulations on Obligatory Insurance and Civil Liability for Motor Vehicles, approved in Royal Decree 1507/2008, dated 12 September.

The rights and obligations arising from this coverage are defined and governed by the legal or regulatory provisions cited in the preceding paragraph and, for all other matters, by Spanish Insurance Contracts Act 50/1980 of 8 October and the General and Specific Conditions of this policy, which adapts to the said act.

The compulsory Civil Liability insurance covers the sums set forth in the regulations at the time of the accident, at the most.

In the claim of bodily injury, the Insurer shall be free of this obligation if it is proved that the bodily injury was only due to the fault or negligence of the aggrieved party or to a force majeure beyond the scope of driving a vehicle. Vehicle defects and broken parts or mechanisms shall not be considered force majeure.

In the claim of property damage, the Insurer warrants any sums that the driver may have to pay to third parties due to civil liability, pursuant to Articles 1902 and following of the Spanish Civil Code, and Articles 109 and following of the Spanish Criminal code, approved by Organic Act 10/1995, of 23 November.

2. Exclusions in Type One A

a) Bodily injury and damage to property:

Caused by the driver of the insured vehicle and any harm caused by the injuries or death of the said driver.

Caused to third parties when the vehicle has been stolen or purloined, without prejudice to compensation on the part of the Consorcio de Compensación de Seguros.

Injury caused to the people who voluntarily occupied the vehicle that was stolen or purloined when the Insurer proved that they knew that it had been stolen or purloined.

b) Material damage to the insured vehicle or due to towing, to the objects that were being transported in the vehicle, to property belonging to the Policyholder, Insured, owner or driver, and to the property of their spouses and blood relatives down to the third level or have an affinity with the latter.

ARTICLE 34 - TYPE ONE - VOLUNTARY CIVIL LIABILITY

1. Object of the coverage

By virtue of Articles 1902 and following of the Spanish Civil Code, and Article 109 and following of the Spanish Criminal Code approved by Organic Act 10/1995, of 23 November, the Insurer warrants, up to the limit convened in the Specific Conditions of this policy, the payment of any indemnities to which the Insured or the authorized driver who holds a valid licence are sentenced to pay due to non-contractual Civil Liability that is the result of the damage caused to third parties in an accident involving the vehicle described in the policy.

This warranty shall cover any indemnities that exceed the current compulsory Civil Liability coverage, within the limits convened in the Specific Conditions.

2. Exclusions

a) Liability for damage to the objects transported in the vehicle.

b) Liability for damage to objects transported in the vehicle or that are in the possession of the Insured and the people for whom the Insured is liable, even when they are caused by a traffic accident, except in private cars.

c) Contractual Civil Liability.

d) Liability due to bodily harm or injury caused to the people who were being transported, if the vehicle concerned was not officially authorised to transport people.

e) Liability for damage to a trailer of a towing vehicle.

f) Expenses due to the defence of the Insured or the driver in criminal proceedings before the courts, tribunals and competent authorities, unless otherwise convened, or what is envisaged in the contract for legal defence and claims for damages.

g) Payment of fines or penalties ordered by the courts or competent authorities, and the consequences of failure to pay.

h) Damage caused by transporting inflammable, explosive, toxic and hazardous material in general.

i) Material damage to the insured vehicle or due to a trailer possibly attached to it, to the objects transported therein, to property belonging to the Policyholder, the Insured, the owner or the driver, as well as to their spouses and blood relatives down to the third level or who have an affinity to the latter.

j) The employees or workers of the people whose Civil Liability is covered by this policy when the traffic accident should be considered an industrial accident pursuant to current labour laws, including when they have not been duly affiliated to the Spanish Health and Social Security system.

ARTICLE 35 - TYPE TWO - DAMAGE TO THE INSURED VEHICLE, FIRE INCLUDED

1. Object of the coverage

Within the limits set forth in the Specific Conditions of this policy, any damage to the insured vehicle due to an accident caused by an external, violent and instantaneous claim, or by fire or explosion, without the volition of the driver, when the vehicle is being driven or is parked, or while it is being transported, except by sea or by air.

Therefore, the warranties shall expressly include damage due to:

Overturning or a fall of the vehicle, or collisions with people, animals, other vehicles and with other moving or non-moving objects.

Sunken land, bridges, roads and buildings.

Vandalism: Malicious intent on the part of third parties, providing the reason is not political or social.

Fire, explosion and lightening.

Accidents due to faulty material, construction defects and poor conservation. It shall be understood that in such cases the warranties shall be limited to repairing the damage caused by the accident and shall not include repairing the faulty or poorly cared for parts.

In addition, the Insurer shall assume the following expenses if they are the result of a claim that is warranted in this type:

Expenses for the services of the fire department and the expenses caused by the measures adopted by the Authority due to their intervention in extinguishing the fire or explosion of the insured vehicle.

The expense of inspecting the vehicle at a Technical Inspection of Vehicles (ITV, in Spanish) point, when the vehicle has been considerably damaged due to a claim covered in this policy type, and an Agent has proposed the inspection and taken away the vehicle registration document.

The unavoidable expenses caused by towing the damaged vehicle, excluding rescue and salvage, to the garage closest to the place where the accident took place, if the vehicle is not in condition to be driven.

Likewise, the Insurer shall assume the expense for cleaning and refurbishing an insured vehicle that has been damaged due to a claim covered herein or due to the circumstantial moving of the accident victims, providing the cleaning is done during the five days immediately following repairs on the vehicle.

The warranties in this Article may be limited to the total loss of the insured vehicle, as set forth in the Specific Conditions of the policy. In the event of a claim, the warranties set forth in Article 28 herein shall apply.

Likewise, the warranties of this Article may be limited by including an excess on the total damages and costs, to the sum given in the Specific Conditions of this policy. The Insured shall pay the sum directly in each claim in which the insured vehicle incurs, with the prior agreement of the Insurer.

The fire warranties in this Article may be taken out separately from the warranties for damages, as stated in the Specific Conditions of the policy.

2. The scope and limit of the warranties in Type Two are set forth pursuant to the rules below

2.1. Repairs of material damage shall be assessed according to the cost of parts, paint, labour and VAT and similar taxes, if the said taxes cannot be recovered by the Insured.

2.2. In the claim of total loss, pursuant to Article 28, section 3, the compensation shall be 100 percent of the market value. However, for private cars, the compensation shall be 100 percent of the purchase value if the vehicle is no more than two years older than the date of its first registration, and 120 percent of the market value if it is three years older than the date on which it was registered.

2.3. The standard elements included in the insurance shall be compensated according to the preceding paragraph.

2.4. The optional elements, and concretely the image, sound and communication devices and their component parts, whether or not they are standard, shall be compensated at one hundred percent of the value insured at first loss.

2.5. Damaged Personal belongings as fire result in vehicle, maxim compensation shall be Euros 250, under presentation of buy ticket.

2.6. Children seats damaged by fire, maxim compensation shall be Euros 200, by presenting buy ticket.

3. Total loss report

Total loss shall exist in a claim when the estimated cost for repairing the damaged vehicle exceeds 75 percent of its market value or of its purchase value if such a warranty applies, in which case the claim shall be settled pursuant to the General Conditions herein, after the value of the remains which are still owned by the Insured are deducted.

4. Exclusions in Type Two

- a) Those which are not expressly stated in the contract as being covered.
- b) Any damage caused to the insured vehicle by the objects being transported or due to loading and unloading such objects.
- c) Any damage caused by seismic, atmospheric (except for hail and lightening) or thermal phenomena, including those due to water freezing in the radiator.
- d) Those that affect the tyres (tyres and inner tubes), except in the case of total loss, fire or explosion of the insured vehicle.
- e) The eventual depreciation of the vehicle after it has been repaired following a claim.
- f) Damage affecting an insured vehicle's accessories, which are to be construed as any improvements, decorations and comfortable items that are not part of the vehicle when it leaves the factory and are not shown in the manufacturer's catalogue, unless they are expressly represented and listed in the Specific Conditions. This exclusion shall not take place when the entire value of the accessories mounted in the insured vehicle do not exceed Euros 500. Image, sound and communication devices shall not be included in this exception.
- g) Damages whose coverage is the Consorcio de Compensación de Seguros's concern.
- h) Mechanical and/or electrical breakdowns, as well as simple wear and tear due to usage or poor conservation.
- i) Damages that affect a trailer or caravan, when they do not have the same licence plate as the towing vehicle included in the policy.
- j) They are not considered as personal belongings, professional objects or tools, money, jewels, stamps, lottery, tickets, mobile phones, smartphones, sound or entertainment equipments, or any other property insured under another policy.
- k) No cover is provided under this Policy for damage to the insured vehicle while stationary caused directly or indirectly by Rodents, Vermin, Infestation or a Domestic Pet. This includes chewing, gnawing, scratching, nesting, fouling or contamination. This exclusion does not apply to cover required under compulsory motor civil liability law or to damage caused by an insured collision, impact or road traffic accident.

ARTICLE 36 - TYPE TWO - THEFT OF THE VEHICLE

1. Object of the coverage

With this coverage, the Insurer undertakes to compensate the Insured, within the limits of this policy, for damage or loss of the insured vehicle in the event that it is stolen or an attempt is made to steal it by third parties.

The warranties contained in this Article may be limited to theft of the entire insured vehicle, this being established in the policy's Special Conditions.

Likewise, the coverage established in this Article may be limited by including an excess on the total damages and costs, to the amount established in the Special Conditions of this policy. The Insured shall pay said sum directly in each claim in which the insured vehicle incurs, following agreement with the Insurer.

2. Scope and limit of Theft of vehicle

2.1. Repairs of material damage shall be assessed according to the cost of parts, paint, labour and VAT and similar taxes, if the said taxes cannot be recovered by the Insured.

2.2. In the claim that the entire vehicle is stolen, the compensation shall be 100 percent of the market value. However, for private cars, the compensation shall be 100 percent of the purchase value if the vehicle is no more than two years older than the date of its first registration, and 120 percent of the market value if it is three years older than the date on which it was registered. For private motorcycles and during the first year following their first registration, compensation shall be 100 percent of their purchase value.

2.3. The tyres and battery shall be compensated for 100 percent of their market value.

2.4. If fixed parts that are an integrated part of the vehicle have been stolen, the replacement value shall be compensated.

2.5. Standard and optional elements, including image, sound and communication devices and their component parts, if they are warranted pursuant to Article 37, paragraph 2, sections 2.3 and 2.4, shall be compensated as established therein.

2.6. When an insured vehicle has been stolen, the Insurer shall also warrant 100 percent of the damage caused to the vehicle while it was in the hands of the authors of the theft or their accomplices. If, as result of the said damage, the Insurer considers the vehicle to be a total loss, they shall compensate pursuant to section 2.2 of this type.

2.7. The cost of cleaning and refurbishing the vehicle, providing it is done within the five days immediately following recovery of the vehicle.

2.8. Damaged Personal belongings as fire result in vehicle, maxim compensation shall be Euros 250, under presentation of buy ticket.

2.9. Children seats damaged by fire, maxim compensation shall be Euros 200, by presenting buy ticket.

3. Exclusions in Type Two

a) Those whose coverage is not expressly stated in the contract.

b) When the theft is due to gross negligence on the part of the Insured, the Policyholder, the owner, the driver or those who are dependent on or live with them.

c) Theft in which the authors, accomplices or receptors are blood relatives down to the third level of the Insured, the Policyholder, the owner or the driver, or their dependents, or earn their salary from one of them.

d) When the theft occurs on the occasion of claims that are the result of extraordinary risks.

e) Theft that affects a trailer or caravan, when their licence plate is the same as the licence of the towing vehicle included in the policy.

j) They are not considered as personal belongings, professional objects or tools, money, jewels, stamps, lottery, tickets, mobile phones, smartphones, sound or entertainment equipments, or any other property insured under another policy.

ARTICLE 37 - TYPE TWO - WINDSCREEN BREAKAGE

1. Object of the coverage

With this coverage, the Insurer warrants the cost of repairing or replacing and putting in car windows in the vehicle specified in the Specific Conditions, if they have been broken.

Breakage shall mean windows that have been completely or partly broken so that they are rendered useless, as the result of an instantaneous and violent cause that is was not intention of the owner, the Policyholder or the driver of the vehicle.

2. Elements included in the coverage but limited to 750 euros.

The windscreen.

The back window.

The side windows.

The sunroof, if it is standard.

Repairs shall be evaluated by the cost of the glass, labour and VAT or similar taxes, if such tax is not recoverable by the Insured.

3. Urgent repairs

The Insurer authorises the owner and the driver of the insured vehicle to order any urgent repairs that are needed to continue to use the vehicle, with no further formality.

The Insured shall give the Insurer the invoice for the sum paid for the urgent repairs, which shall be included in the final settlement.

4. Exclusions in Type Four

a) Those that are not expressly stated as covered in the contract.

b) Breakage caused by faulty facilities or while the windows are being put in place.

c) Breakage caused during repair work, while putting windows in place or reforming the vehicle or its windows.

d) Damage and breakage caused to headlights, pilot lights, indicators, mirrors and any other kind of glass object in the insured vehicle.

e) The windows of any trailer that may be included in this policy, unless otherwise convened.

f) Scratches, scrapes, chipping and other damage to the vehicle's body surface.

g) Damage caused by weather phenomena, except hail.

ARTICLE 38 - TYPE TWO - BODILY ACCIDENTS

1. Object of the coverage

With this coverage, the Insurer warrants bodily injury caused by accidents due to a violent, sudden, external and unwanted event to the people who are being transported in the vehicle, whose characteristics are set forth in the Specific Conditions, when they travel, get on or off the vehicle, including carrying out repairs en route, providing the vehicle was driven by a person who is authorised by the Policyholder and holds a valid driving licence. Any other accident due to reasons not stated in this paragraph shall not be included in the insurance warranties.

The insured capital for driver of the vehicle, is limited to a maximum of Euros 6.000.

In the event that, when an accident occurs, the number of occupants in the vehicle is higher than the number of insured seats, the indemnities shall be reduced in proportion to the effective number of occupants, whether or not they are covered by the insurance. This rule shall not apply when this type only covers the driver.

Children under 14 shall be considered to occupy half a seat.

However, the Insurer shall be free of any obligation if the Authorities consider that the accident was due to the transportation of too many people.

To the effects of this coverage, the terms given below shall mean:

INSURED: The natural person or people for whom the insurance is taken out; that is, the insured vehicle's occupants.

ACCIDENT: Bodily injury as a direct result of a violent, sudden, external event that is not the intention of the Insured, and that occurs when travelling, getting in or out of the insured vehicle, and even when it is being repaired en route.

BENEFICIARY: The person who shall receive the insured benefits with this coverage, and who is the same person as the Insured in the case of disability and healthcare. If the Insured dies, unless otherwise stated in the policy, the order of precedence shall be:

- 1) The Insured's spouse, if they have not been legally separated.
- 2) The Insured's children.
- 3) The Insured's heirs.

2. Death

The Insurer warrants the payment of the benefit limited to a maximum of Euros 6.000 if the Insured dies as the result of an accident covered by the policy.

For occupants under fourteen or with disability, the benefit for death shall refer to the cost of burial, with due proof of payment and up to a maximum limit of Euros 600.

In the event of the driver's death, the Insurer warrants the payment of a benefit equivalent to double the capital convened in the Specific Conditions if the driver was in charge of minors or a person of legal age with a disability.

3. Permanent disability

To the effects of this policy, permanent disability shall be construed as the irreversible physical or mental condition of the Insured due to a traffic accident covered by the policy.

In the event of permanent partial disability, the Insurer warrants the sum, limited to a maximum of Euros 6.000, that is the result of applying the percentages given on the scale below to the benefit fixed for this risk:

- | | |
|--------------------------------------|------|
| - Complete paralysis..... | 100% |
| - Incurable mental derangement | 100% |
| - Absolute blindness | 100% |

- Loss, or total and partial impairment of:	
- Both arms, hands, legs or feet; of an arm and a leg or a foot; or of a hand and a foot.....	100%
- An arm or a hand	60%
- A thumb.....	20%
- An index finger	15%
- One of the other fingers	8%
- Shoulder movement	30%
- Elbow movement.....	30%
- Wrist movement.....	30%
- A leg, above the knee	60%
- A leg at the height of or just below the knee, or an entire foot	60%
- A big toe	10%
- One of the other toes.....	5%
- Hip or knee movement	60%
- Ankle movement	20%
- Subastragalar joint movement	10%
- Cervical, spinal or lumbar column movement, with or without neurological manifestations	33%
- An eye, or impaired vision of no less than half of the binocular vision	30%
- If vision in the other eye was already lost prior to the accident	50%
- A shortening of a leg by no less than five centimetres.....	30%
- A non-consolidated fracture of a leg or a foot	25%
- A non-consolidated fracture of a knee-cap	20%
- Complete surgical removal of the lower jaw or total loss of the lower maxillary	25%
- Complete loss of hearing in both ears	40%
- Complete loss of hearing in one ear	20%
- If there was complete loss of hearing in the other ear prior to the accident.....	30%

In the case of a disability that is not envisaged above, the quantity of the benefit shall be established by analogy with the policy's scale, proportionately to the seriousness.

Establishment of the degree of disability shall be done pursuant to Article 104 of the Spanish Insurance Contracts Act. If the Insured does not accept the Insurer's proposition regarding the degree of disability, the parties shall submit to the decision of the medical appraisers, pursuant to Articles 38 and 39 of the said Act.

The functional loss of a member or organ is construed as equivalent to its anatomical loss. If the anatomical or functional loss is only partial, the degree of disability to be considered shall diminish proportionately.

Permanent disability is evaluated by excluding any disabilities or injuries that the Insured had prior to the accident, the causes of which shall be considered as being suffered by a person with a normal body.

The sum of the benefits for the various types of partial permanent disability shall not exceed the sum total of the benefit set forth in the Specific Conditions as a disability warranty. Likewise, the sum of the various types of disability in a single member or organ shall not exceed the sum of the benefit established for its total loss.

The sum of the benefits paid for disability as a result of a single accident shall be deducted from the benefits to be paid for death, limited to Euros 6.000.

In the event of severe disablement of the driver, the Insurer warrants a benefit equivalent to the double of the capital convened for disability limited in Euros 6.000, if the driver has children under three or disabled elderly people.

4. Healthcare

The Insurer warrants the payment of healthcare expenses incurred by the Insured due to an accident covered by the policy, for a period of no more than one year, counted from the date on which the accident occurred.

This warranty includes the cost of emergency and first aid care, medical care, ambulances and emergency transportation, chemists, hospitalization, and rehabilitation, with the limits set forth in the Specific Conditions for this warranty and providing that the care was prescribed by a doctor and was performed in the country where the accident occurred, or in Spain.

Health care shall be carried out in surgeries and by doctors accepted by the Insurer. Otherwise, the Insurer shall not pay more than the fixed rate established in the hospital assistance agreement accepted by the Spanish Consorcio de Compensación de Seguros, and the rest shall be paid by the Insured.

In addition, this warranty includes the cost of assistance in the event of member and organ transplants, placement and replacement of prostheses, teeth, eye lenses or hearing aids, which are limited to 10 percent of the capital convened in Euros 6.000 for the disablement warranty.

5. Claims

In addition to what is stipulated in Articles 17 and 18, the Policyholder, the Insured or their Beneficiaries shall provide the Insurer with full information regarding the circumstances and consequences of the claim.

In the event of disablement:

In addition to the first paragraph, the Policyholder, the Insured or their beneficiaries shall state who the witnesses were, if appropriate, and enclose a doctor's certificate that describes the Insured's injuries.

Send the Insurer doctor's certificates on the evolution of the injuries in regular periods of no more than 30 days until the Insured is discharged from the hospital.

Notify the Insurer of the Insured's death while undergoing treatment before 7 days have elapsed since the death occurred.

A breach of the above obligations shall allow the Insurer to sue for the damages caused to the Insured, unless the damage was caused by the malicious intent or gross negligence on the part of the Policyholder or the Insured, in which case they shall lose the right to compensation.

6. Compensation payment

The benefits shall be paid pursuant to Article 30 in the Specific Conditions.

Any indemnities and payments made by the Insurer for permanent disability due to an accident and that subsequently cause the death of the Insured, shall be deducted from the compensation for death.

The indemnity shall be paid by the Insurer after the investigation required to establish the existence of the claim and the consequences thereof has concluded.

To obtain payment, the Policyholder, the Insured or the Beneficiary shall send the Insurer the following documents:

6.1. For all of the warranties:

Proof of the Beneficiary's identity.

A certificate from the doctor who attended the Insured, stating the causes, circumstances and consequences of the claim.

6.2. For death:

A literal, certified copy of the Insured's Death Certificate.

A completed form for the payment of the Inheritance and Donations Tax, if the Beneficiary is not the Policyholder and is not a legal person.

6.3. For permanent disability, a doctor's certificate stating the type of disability caused by the accident.

6.4. For health care, a receipt any disbursements, with a detailed list of the items therein.

7. Exclusions

The Insurer does not cover accidents:

a) Caused intentionally by any occupant of the a vehicle or their beneficiaries, for the part of the warranties that concern them. The rights of the rest of the occupants or beneficiaries who were not liable for the accident shall remain unaffected.

b) Caused by drunk driving or driving under the influence of drugs, narcotics and psychoactive substances, and when testing the driver of the insured vehicle after the claim shows levels of alcohol in blood or in the driver's breath that are higher than the law allows, or when the driver is found guilty of drunk driving, or when a court ruling states drunk driving as the main or concurrent cause of the accident.

c) When the insured vehicle is driven by a person who does not hold an appropriate driving licence and when the driving licence is no longer valid.

d) That have been caused by paralysis or epilepsy; accidents caused by suicide or attempted suicide, whether intentional or due to derangement.

e) Suffered by people who occupied the vehicle without the permission of the Policyholder or the owner of the vehicle, or who have stolen or purloined it.

Under no circumstance shall this coverage warrant:

Syncopes, fainting, apoplexy and epileptic attacks, and the lesions that may result from any one of these.

Aneurisms, varicose veins and all types of hernias and their consequences, as well as lumbago.

The consequences of surgery that has not been caused by an accident warranted in this coverage.

Food poisoning, sunburn and frostbite and other consequences of temperature that are not caused by an accident warranted in this coverage.

Scars, aesthetic consequences and deformities that are not functionally significant.

In the event of a worsening of the consequences of an accident due to a disease or morbid state that was prior to an accident or that occurred afterwards, but that were not caused by the accident, the Insurer shall only be liable for the consequences that the accident may have had if the said disease or morbid state did not exist.

ARTICLE 39 - EXTRAORDINARY RISK COVERAGE CLAUSE

The following clause shall apply for the coverage governed by Types One and Two of this policy:

CLAUSE ON COMPENSATION OF LOSSES ARISING FROM EXTRAORDINARY EVENTS BY THE CONSORCIO DE COMPENSACIÓN DE SEGUROS

In accordance with the provisions of the redrafted text of the Legal Statute for the Consorcio de Compensación de Seguros, enacted by Royal Legislative Decree 7/2004 of 29th October, any policyholder of those insurance contracts which compulsorily must include the charge in favour of the aforesaid public entity are entitled to take out the cover of the extraordinary risks with any insurer meeting the conditions required by the legislation in force.

Compensation deriving from losses arising out of extraordinary events taking place in Spain and affecting risks located therein and, with regard to personal damage, also those extraordinary events occurring abroad when the insured habitually resides in Spain, will be paid by the Consorcio de Compensación de Seguros if the policyholder has paid the relevant charges in its favour and provided that one of the following circumstances occurs:

- a) When the extraordinary risk covered by the Consorcio de Compensación de Seguros is not covered by the insurance policy taken out with the insurer.
- b) When, even though the risk is covered by the said insurance policy, the obligations of the insurer cannot be met because the insurer is declared insolvent by a Court or because the insurer is subject to a winding-up procedure supervised or carried out by the Consorcio de Compensación de Seguros.

The Consorcio de Compensación de Seguros will act in accordance with the aforementioned Legal Statute, the Law 50/1980 of 8th October on Insurance Contract, the Regulations on Extraordinary Risks approved by Royal Decree 300/2004 of 20th February and other complementary legislation.

SUMMARY OF LEGAL RULES

1. Extraordinary events covered.

- a) The following natural phenomena: earthquakes and tidal waves, extraordinary flooding including those provoked by sea dashing, volcanic eruptions, unusual cyclonic activities (including extraordinary winds of more than 120 km/h and tornadoes), and falling of astral bodies and meteorites.
- b) Those events occurring violently as a result of terrorism, rebellion, sedition, insurrection, and popular tumult.
- c) Events or acts of the Military Forces or State Security Bodies in peacetime.

The atmospheric and seismic phenomena, volcanic eruptions and the falling of astral bodies will be certified, at the request of the Consorcio de Compensación de Seguros, through reports issued by the State Meteorology Agency (AEMET), the National Geographic Institute and others competent public bodies. In the case of political or social events

as well as in the event of damage caused by facts or acts of the Military Forces or State Security Bodies in peacetime, the Consorcio de Compensación de Seguros shall be able to collect information about the facts from the competent judicial or administrative authorities

2. Risks excluded

- a) Those which do not give rise to compensation in accordance with the Insurance Contract Law.
- b) Those caused to property insured under an insurance contract other than those contracts with a mandatory charge in favour of the Consorcio de Compensación de Seguros.
- c) Those caused by a fault or defect of the insured item or by its evident lack of maintenance.
- d) Those caused by armed conflicts, even when not preceded by a formal declaration of war.
- e) Those arising from nuclear energy, without prejudice to the provisions of the Law 12/2011 of 27th May on liability for nuclear damage or provoked by radioactive materials. Notwithstanding the foregoing, direct damage to an insured nuclear facility will be deemed to be included when the damage is caused by an extraordinary event affecting the facility itself.
- f) Those due to the mere action of time and, in the case of goods which are totally or partially permanently submerged, those caused by the mere action of waves or ordinary currents.
- g) Those produced by natural phenomena other than the natural phenomena mentioned in section 1.a) and, in particular, those arising from rising groundwater levels, the movement of embankments, sliding or settlement of land, falling rocks and similar phenomena, unless the damage is manifestly caused by the action of rainwater which, in turn, has caused a situation of extraordinary flooding in the area and the damage arises simultaneously with such flooding.
- h) Those caused by acts of popular uprising in the course of meetings and demonstrations carried out in accordance with the provisions of Organic Law 9/1983 of 15th July 15th governing the right of assembly, as well as in the course of legal strikes, except where such acts could be qualified as extraordinary events of those indicated in section 1.b).
- i) Those caused by bad faith of the insured.
- j) Those deriving from losses arising from natural phenomena causing damage to goods or loss of profits when the policy's issue date or effective date (if later) does not precede the date on which the loss occurred by seven calendar days, unless it can be proven that it would have been impossible to take out the insurance policy earlier because the insurable interest did not exist. This waiting period shall not apply in case of replacement or substitution of the policy with the same or another company without a smooth transition, except in the part subject to an increase or new coverage. It shall not apply also to the part of the insured capital resulting from the automatic revaluation established in the policy.
- k) Those relating to losses occurring before payment of the first premium or when, in accordance with the Insurance Contract Act, the Consorcio de Compensación de Seguros's coverage is suspended or the insurance contract is annulled due to non-payment of premiums.

- l) With regard to material damage, indirect risks or losses arising from direct or indirect damage other than loss of profits eligible for compensation as per the Regulation on the insurance of extraordinary risks. In particular, this coverage includes neither loss or damage incurred resulting from power cuts or changes to the external supply of electricity, fuel gases, fuel oil, diesel oil or other fluids nor any indirect damage or loss other than that cited in the foregoing paragraphs, even if those changes arise for a reason included in the cover of extraordinary risks.
- m) Those declared by the National Government to be a “national calamity or catastrophe” in view of their magnitude or severity.
- n) In the event of land vehicles liability, personal damage arising from this cover.

3. Deductible

I. The deductible for the insured shall be:

- a) In the case of direct damage, in insurance policies covering damage to goods, the deductible for the insured will be 7% of the amount of the compensable damage caused by the loss. However, no deduction for deductible will apply to damage affecting homes, ownership communities and vehicles which are insured under a motor policy.
- b) In the case of miscellaneous pecuniary losses, the deductible for the insured will be that established in the policy, in time or amount, for damage resulting from ordinary claims of loss of profits. If there are several deductibles for the cover of ordinary claims of loss of profits, those established for the main cover will apply.
- c) When the policy provides a combined deductible for damage and loss of profits, material damage will be settled by the Consorcio de Compensación de Seguros once applied the appropriate deductible as provided in section a); and the loss of profits with deduction of the deductible stated in the policy for the main cover, less the deductible applied in the settlement of material damage.

II. In the case of personal insurance, no deductible will apply.

4. Extension of the cover.

1. The cover for extraordinary risks will apply to the same goods or people as well as sums insured established in the insurance policies covering the ordinary risks.

2. Notwithstanding the foregoing:

- a) For policies covering own damage to motor vehicles, the cover of the extraordinary risks by the Consorcio de Compensación de Seguros shall guarantee the total insurable interest even if the ordinary policy only covers it partially.
- b) When the vehicles only had a motor liability policy, the cover of extraordinary risks by the Consorcio de Compensación de Seguros shall guarantee the value of the vehicle in its state at the moment immediately prior to the occurrence of the loss at purchase price generally accepted in the market.
- c) For those life policies generating a mathematical provision in accordance with the policy and the applicable regulations for private insurance, the cover provided by the Consorcio de Compensación de Seguros will refer to the capital at risk for each insured, i.e. the difference between the sum insured and the mathematical provision that, in accordance with the said regulations, the insurer must have established. The amount relating to the said mathematical provision will be paid by the said insurer.

NOTIFICATION OF LOSSES TO THE CONSORCIO DE COMPENSACIÓN DE SEGUROS

1. The application for indemnity of losses covered by the Consorcio de Compensación de Seguros shall be made through notification of the loss by the policyholder, the insured or the policy's beneficiary or by someone acting on their behalf, or by the insurer or the insurance intermediary which mediated in the policy.
2. Notification of losses and receipt of information about the procedure and the state of the file can be made:
 - Via phone call to the Consorcio de Compensación de Seguros call centre (902 222 665 or 952 367 042).
 - Via the Consorcio de Compensación de Seguros webpage (www.conorseguros.es).
3. Assessment of losses: The assessment of the losses which are payable in accordance with the insurance laws and the content of the policy shall be made by the Consorcio de Compensación de Seguros, and this entity shall not be bound by any assessment made by the insurer covering the ordinary risks.
4. Payment of indemnity: The Consorcio de Compensación de Seguros shall pay the indemnity to the policy's beneficiary through bank transfer.

16/05/18

LSW1682C-15

ARTICLE 40 - CHANGING THE PREMIUM ACCORDING TO THE PERSONAL ACCIDENT RATE

Successive premiums shall be calculated on the basis of the Insured's personal accident rate.

To calculate a new premium, the accident rate of the first 10 months of a valid policy shall be observed.

For the second and subsequent years, the observation period shall be 12 months, counted from the date on which the observation period for the previous year ended.

GENERAL ADVICE IN CASE OF AN ACCIDENT

Write down the personal details of the owner and driver if the other vehicle or vehicles involved, whether or not they have collided with you directly, if possible complete the DAA.

Write down the material damage caused to your vehicle and the other vehicle or vehicles, even if you were not to blame. Likewise, write down any bodily injury you may have suffered.

Try to make a sketch of how the accident happened.

Write down the details of the police who intervened.

Remain calm and try to have both drivers sign the friendly accident report, telling the facts truthfully. All of this will be help to resolve the claim in a few days.

Tell the Insurer about the claim with the least possible delay, giving all of the data you have.

Acceptance of Limiting Clauses and Written Acceptance

In accordance with Article 3 of the Spanish Insurance Contract Act, clauses that may be deemed to restrict the rights of the Insured have been specially highlighted or identified. The Policyholder/Insured confirms by signature or, where the policy is issued electronically, by online signature or another durable-medium acceptance, that they have specifically reviewed, understood and accepted those clauses.

THE POLICYHOLDER / INSURED: _____ Date: _____

LSW1691-15

Spain Private Motor Insurance Policy Wording

Endorsements and regulatory notices

Country / territory	Spain
Policy wording reference	AB/S/1/2026
Santam BDX UMR	B176026EEA6152
Binder period	1 August 2026 to 31 July 2027
Insurer	Lloyd's Insurance Company S.A.
Lloyd's Lead / Syndicate	Lloyd's Insurance Company S.A. - Santam Syndicate SNT5436
Coverholder	Abbeygate Insurance Brokers Limited
Application	The clauses in this section form part of this Policy. Only the country-specific clauses for the territory stated above apply to this wording.

These clauses are customer-facing policy terms and should be read with the Schedule, Certificate of Insurance, IPID and any endorsement issued with this Policy.

LBS0007	Language Declaration Clause
LBS0046D	Data Protection Short Form Privacy Notice
LBS0088	Parental Consent for Children Personal Data
LMA3201	Sanctions Suspension Clause (Consumer)
LMA5441 / LMA5435	Motor Insurance Cyber Exclusions
LMA5393	Communicable Disease Endorsement
NMA0464 / Sanctions	War, civil war, radioactive contamination, terrorism and sanctions limitation wording
LBS0034D / LBS0021C / LBS0081	Spain complaints notice, pre-contract notice and service of suit / jurisdiction clause

Language Declaration Clause - LBS0007

The insured has declared their understanding of, and has requested for the contract of insurance to be provided in, the English language. The insured confirms they understand such contract and agree to be bound by its terms and conditions.

LBS0007 | 01/01/2019

Data Protection Short Form Privacy Notice - LBS0046D

The Data Protection Notice forms part of this policy documentation. It explains how Lloyd's Insurance Company S.A. and other parties in the insurance chain collect, use, share and retain personal information, including special category personal data where relevant to underwriting, policy administration or claims handling.

Where the policyholder provides personal data about another person, the policyholder must ensure that the relevant privacy information is provided to that person. LBS0046D | 17/03/2023

Parental Consent for Children Personal Data - LBS0088

Where children's personal data is processed as a legal basis under applicable data protection law, written consent from the parent or legal guardian must be obtained before Lloyd's Europe processes that child's personal data in connection with the insurance cover or a claim.

Consent to process personal data about a child in connection with this insurance cover: Yes / No Child name:

 _____ Parent/legal guardian: _____ Signature / electronic acceptance:
 _____ Date: _____

LBS0088 | 17/03/2023

Sanctions and cyber / disease exclusions

Sanctions Suspension Clause (Consumer) - LMA3201

No insurer shall be deemed to provide cover, be liable to pay any claim or provide any benefit under this Policy to the extent that the provision of such cover, payment of such claim or provision of such benefit would expose that insurer to any sanction, prohibition or restriction under applicable sanctions, trade or economic sanctions laws or regulations.

Where the insurer is prevented from paying a claim or providing a benefit solely because of such sanctions, the insurer's obligation is suspended only to the extent and for so long as the relevant sanction, prohibition or restriction applies.

LMA3201

Motor Insurance Cyber Exclusions - LMA5441 / LMA5435

This Policy does not cover loss, damage, liability, cost or expense caused directly or indirectly by a cyber act, cyber incident, use of or inability to use data, computer systems, software, networks or similar electronic systems, except to the extent that cover is expressly preserved by the applicable motor insurance cyber exclusion wording included in this Policy.

LMA5441 and LMA5435 apply as motor insurance cyber exclusions.

Communicable Disease Endorsement - LMA5393

This Policy does not cover any loss, damage, liability, cost or expense directly or indirectly arising out of, contributed to by, resulting from, or in connection with any communicable disease, or the fear or threat of such disease, except to the extent that cover is expressly preserved by law or by the wording of this Policy.

LMA5393

Radioactive contamination, terrorism, war and sanctions limitations

This Policy is subject to the radioactive contamination exclusion, terrorism exclusion, NMA0464 war and civil war exclusion, and sanctions and limitations exclusion clause stated in the Policy wording. Nothing in this Policy requires the insurer to provide cover or pay a claim where doing so would be prohibited by applicable law or regulation.

Territorial Exclusion: Russia, Ukraine and Belarus - LMA5583B

Notwithstanding anything to the contrary in this Policy, this Policy excludes loss, damage, liability, cost or expense of whatsoever nature directly or indirectly arising from or in respect of any entity, property, asset, individual, claim, action, suit, enforcement proceeding or payment connected with Belarus, the Russian Federation, or Ukraine, including any disputed regions of Ukraine and the Crimean Peninsula, except to the extent that coverage or benefit is required by law or regulation applicable to the insurer.

LMA5583B | 8 March 2023

Spain-specific notices

Complaints Notice - Spain (FOS) - LBS0034D

Any complaint should be addressed to Abbeygate Insurance Brokers Limited or to Head of Complaints Management, Lloyd's Insurance Company S.A., Bastion Tower, Marsveldplein 5, 1050 Brussels, Belgium. Complaints will be acknowledged within 5 business days and a decision provided within 1 month. The customer may be eligible to refer the complaint to the Directorate General of Insurance in Spain. LBS0034D | 01/04/2025

Pre-Contractual Information Notice - Spain (FOS) - LBS0021C

The Spain pre-contractual information notice forms part of the documents issued before inception. It provides the Spanish FOS information required for policyholders and identifies the applicable insurer and regulatory information. LBS0021C applies to Spain FOS business.

Service of Suit and Jurisdiction Clause - Spain - LBS0081

This Insurance shall be governed exclusively by the law and practice of Spain and any dispute arising under, out of or in connection with this Insurance shall be exclusively subject to the jurisdiction of any competent court in Spain.

Service may be effected on Lloyd's Insurance Company S.A. general representative in Spain, Paseo de la Castellana, 216, 8th Floor, 28046 Madrid, Spain. LBS0081 | 01/12/20

Signed for and on behalf of Lloyd's Insurance Company S.A. by Abbeygate Insurance Brokers Limited as authorised Coverholder.